

China Dispute Resolution Profile

(Last updated: 13 February 2026)

General Information

- **China tax treaties are available at:**

<https://www.chinatax.gov.cn/eng/c101270/c101275/c5157935/content.html>

- **MAP request should be made to:**

For non- TP MAP cases, Chinese resident (national) should make the MAP request to the relevant Provincial Tax Authority, and the Provincial Tax Authority will forward the file to State Taxation Administration (STA) after collecting all necessary information.

For TP MAP cases, the taxpayer should make the MAP request directly to the STA headquarters, with the “Application for Initiating Mutual Agreement Procedures Concerning Special Tax Adjustments” and relevant information related to the special tax adjustments within the time period specified in the tax treaty. The STA may also initiate mutual agreement procedures upon receiving the formal notification from the competent tax authority of the other tax treaty contracting party.

- **APA request should be made to:**

For a Unilateral APA, the taxpayer shall submit a written application for pre-filing meeting in the form of "APA Pre-filing Meeting Application Letter" to the in-charge tax administration(s).

For a Bilateral APA, the taxpayer shall submit a written application for pre-filing meeting in the form of "APA Pre-filing Meeting Application Letter" to both the STA Headquarters and the in-charge tax administration(s) at the same time.

The contact information is listed in APA annual report. The latest version is at:

<https://www.chinatax.gov.cn/chinatax/n810214/c102374/c102375d/c5245175/5245175/files/%E4%B8%AD%E5%9B%BD%E9%A2%84%E7%BA%A6%E5%AE%9A%E4%BB%B7%E5%AE%89%E6%8E%92%E5%B9%B4%E5%BA%A6%E6%8A%A5%E5%91%8A%EF%BC%882024%EF%BC%89.pdf>

China Dispute Resolution Profile – Preventing Disputes

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
A. Preventing Disputes				
1.	Are agreements reached by your competent authority to resolve difficulties or doubts arising as to the interpretation or application of your tax treaties in relation to issues of a general nature which concern, or which may concern, a category of taxpayers published?	Yes	Where agreements reached by both competent authorities on interpretation of one article, or the understanding of one matter under the treaty, the STA will release the result in the form of Public Announcement.	Public Announcements could be found on STA's official website-
2.	Are bilateral APA programmes implemented? If yes:	Yes	-	https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245860/content.html Announcement of the State Taxation Administration on Matters With Respect to Improving the Administration of Advance Pricing Arrangements (STA Announcement [2016] No. 64)
a.	Are roll-back of APAs provided for in the bilateral APA programmes?	Yes	Where the related party transactions in prior years are the same as or similar to those covered by the APA, per the enterprise's request, the tax administration(s) may apply the agreed pricing methodologies and calculation process specified in the APA to such related party transactions. The maximum rollback period is 10 years.	https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245860/content.html Announcement of the State Taxation Administration on Matters With Respect to Improving the Administration of Advance Pricing Arrangements (STA Announcement [2016] No. 64)

China Dispute Resolution Profile – Preventing Disputes

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
b.	Are there specific timeline for the filing of an APA request?	No	-	https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245860/content.html Announcement of the State Taxation Administration on Matters With Respect to Improving the Administration of Advance Pricing Arrangements (STA Announcement [2016] No. 64)
c.	Are rules, guidelines and procedures on how taxpayers can access and use bilateral APAs, including the specific information and documentation that should be submitted in a taxpayer's request for bilateral APA assistance, publicly available?	Yes	-	https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245860/content.html Announcement of the State Taxation Administration on Matters With Respect to Improving the Administration of Advance Pricing Arrangements (STA Announcement [2016] No. 64) www.chinatax.gov.cn/chinatax/n810214/c102374/c102375d/c5245175/5245175/files/中国预约定价安排年度报告（2024）.pdf China APA Annual Report (2024)
d.	Are there any fees charged to taxpayers for a bilateral APA request?	No	-	-
e.	Are statistics relating to bilateral APAs publicly available?	Yes	-	https://www.chinatax.gov.cn/chinatax/n810214/c102374/c102375d/c5245175/5245175/files/%E4%B8%AD%E5%9B%BD%E9%A2%84%E7%BA%A6%E5%AE%9A%E4%BB%B7%E5%AE%89%E6%8

China Dispute Resolution Profile – Preventing Disputes

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
				E%92%E5%B9%B4%E5%BA%A6%E6%8A%A5%E5%91%8A%EF%BC%882024%EF%BC%89.pdf China APA Annual Report (2024)
3.	Is training provided to your officials involved in the auditing /examination of taxpayers to ensure that any assessments made by them are in accordance with the provisions of your tax treaties?	Yes	China provides annual training sessions to the local officials, including treaty, transfer pricing and MAP topics, etc. to ensure that any assessments made by them are in accordance with the provisions of the tax treaties.	-
4.	Is other information available on preventing tax treaty-related disputes?	No	-	-

Notes:

1. An APA is an “arrangement that determines, in advance of controlled transactions, an appropriate set of criteria (e.g. method, comparables and appropriate adjustments thereto, critical assumptions as to future events) for the determination of the transfer pricing for those transactions over a fixed period of time”. (see definition of APA in the *OECD Transfer Pricing Guidelines for Multinational Enterprises and Tax Administrations* (“Transfer Pricing Guidelines”)).

2. Situations may arise in which the issues resolved through an APA are relevant with respect to previous filed tax years not included within the original scope of the APA. The concept of “roll-back” is further elaborated in paragraph 4.136 of Section F (Advance pricing arrangement) of Chapter IV of the Transfer Pricing Guidelines and in paragraph 69 of Section D.4.2 (Possible retrospective application (“Roll back”)) of the Annex to Chapter IV (Guidelines for Conducting Advance Pricing Arrangements under the Mutual Agreement Procedure (“MAP APAs”)) of the Transfer Pricing Guidelines. Simply put, the “roll-back” of the APA is understood to mean that the outcome of the APA is applied to previous filed tax years not included within the original scope of the APA.

China Dispute Resolution Profile – Availability and Access to MAP

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
B. Availability and Access to MAP				
5.	Are transfer pricing cases covered within the scope of MAP?	Yes	-	https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
6.	Are issues relating to the application of treaty anti-abuse provision covered within the scope of MAP?	Yes	As long as the application of the treaty anti-abuse provision give rise to double taxation or taxation not in accordance with the provision of the treaty, nothing in the law specifically denies MAP access to anti-abuse cases.	-
7.	Are issues relating to the application of domestic anti-abuse provision covered within the scope of MAP?	Yes	As long as the application of the treaty anti-abuse provision give rise to double taxation or taxation not in accordance with the provision of the treaty, nothing in the law specifically denies MAP access to anti-abuse cases.	-
8.	Are issues where there is already an audit settlement between the tax authority and the taxpayer covered within the scope of MAP?	No	China does not have audit settlement mechanism.	-
9.	Are double taxation cases resulting from bona fide taxpayer initiated foreign	No	-	-

China Dispute Resolution Profile – Availability and Access to MAP

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
	adjustments covered within the scope of MAP?			
10.	Are there any other treaty related issues not covered under s/n 5 to 9 which are not within the scope of MAP?	No	-	-
11.	Are taxpayers allowed to request MAP assistance in cases where the taxpayer has sought to resolve the issue under dispute via the judicial and administrative remedies provided by the domestic law of your jurisdiction?	See detailed explanation	There is no provision in the law clearly specifying the relationship between MAP and domestic remedies. However, access to MAP is available regardless of whether taxpayers also have sought to resolve the dispute via domestically available administrative and judicial remedies.	-
12.	Are taxpayers allowed to request for MAP assistance in cases where the issue under dispute has already been decided via the judicial and administrative remedies provided by the domestic law of your jurisdiction?	See detailed explanation	Even though there is no provision in the law clearly specifying the relationship between MAP and domestic remedies, there is no provision preventing the taxpayers requesting for MAP assistance where the issue under dispute has already been decided via the judicial and administrative remedies provided by the domestic law.	-
13.	Are rules, guidelines and procedures on how taxpayers can access and use MAP, including the specific information and documentation that should be	Yes	-	For non-TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245870/content.html Announcement of the State Taxation Administration on Issuing the Implementation

China Dispute Resolution Profile – Availability and Access to MAP

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
	submitted in a taxpayer's request for MAP assistance, publicly available?			Measures for the Mutual Agreement Procedure of Tax Treaties (STA Announcement [2013] No. 56); For TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
14.	Are there specific timeline for the filing of a MAP request?	Yes	For TP and non-TP MAP cases, timeline for the filing of a MAP request is as provided by the governing tax treaties.	For non-TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245870/content.html Announcement of the State Taxation Administration on Issuing the Implementation Measures for the Mutual Agreement Procedure of Tax Treaties (STA Announcement [2013] No. 56); For TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and

China Dispute Resolution Profile – Availability and Access to MAP

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
				Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
15.	Are guidance on multilateral MAPs publicly available?	No	-	-
16.	Are tax collection procedures suspended during the period a MAP case is pending?	No	There is no provision in the law that allows suspension of taxation during the process of MAP.	-
17.	Are there any fees charged to taxpayers for a MAP request?	No	-	-
18.	Is there any other information available on availability and access to MAP?	No	-	-

China Dispute Resolution Profile – Resolution of MAP Cases

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
C. Resolution of MAP Cases				
19.	Are there any model timeframes for the steps taken by your competent authority from the receipt of a MAP case to the resolution of the case provided to taxpayers?	No	The resolution of a MAP case depends on a variety of factors and is not determined by a single party. For this reason, the STA does not impose time limits for each step of the MAP process.	For non-TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245870/content.html Announcement of the State Taxation Administration on Issuing the Implementation Measures for the Mutual Agreement Procedure of Tax Treaties (STA Announcement [2013] No. 56) For TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
20.	Are statistics relating to the time taken to resolve MAP cases publicly available?	Yes	-	Relevant statistics are submitted to the Secretariat and published on the website of OECD.
21.	Is interest or penalties resulting from adjustments made pursuant to a MAP agreement waived or dealt with as part of the MAP procedure?	No	-	-

China Dispute Resolution Profile – Resolution of MAP Cases

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
22.	Are the roles and responsibility of the MAP office publicly available, for example, is the mission statement of the MAP office available in the <i>annual</i> report of the organisation?	Yes		https://fgk.chinatax.gov.cn/eng/c101276/c102463/c5245421/5245421/files/2024ndbgeng.pdf State Taxation Administration Annual Report (2024)
23.	Is MAP arbitration a mechanism currently available for the resolution of tax treaty related disputes in any of your tax treaties? If not:	No	-	-
a.	Are there any legal limitations in your domestic law (for example in your constitution) to include MAP arbitration in your tax treaties?	No	-	-
b.	Does your treaty policy allow you to include MAP arbitration in your tax treaties?	No	Arbitration article is not included in the tax treaty model approved by the State Council of China.	-
24.	Is the explanation of the relationship between the MAP and domestic law administrative and judicial remedies publicly available? If yes:	No	There is no provision in the law clearly specifying the relationship between MAP and domestic remedies.	-

China Dispute Resolution Profile – Resolution of MAP Cases

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
a.	Does the guidance specifically address whether the competent authority considers that it is legally bound to follow a domestic court decision in the MAP or will not deviate from a domestic court decision as a matter of administrative policy or practice?	No	There is no provision in the law clearly specifying the relationship between MAP and domestic remedies.-	-
25.	Are taxpayers allowed to request for multi-year resolution through the MAP of recurring issues with respect to filed tax years?	No	-	For non-TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245870/content.html Announcement of the State Taxation Administration on Issuing the Implementation Measures for the Mutual Agreement Procedure of Tax Treaties (STA Announcement [2013] No. 56) For TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
26.	Do all your jurisdiction's tax	No	All China's tax treaties contain the provision of	-

China Dispute Resolution Profile – Resolution of MAP Cases

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
	treaties contain a provision which would oblige your jurisdiction to make corresponding adjustments or to grant access to the MAP with respect to the economic double taxation that may otherwise result from a primary transfer pricing adjustment (i.e. is paragraph 2 of Article 9 of the OECD Model Tax Convention or the UN Model Double Taxation Convention included in all of your jurisdiction's tax treaties)?		MAP, but some tax treaties do not contain corresponding adjustments paragraph.	
27.	Is there any other information available on resolution of MAP cases?	No	-	-

China Dispute Resolution Profile – Implementation of MAP Agreements

s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
D. Implementation of MAP Agreements				
28.	Where the agreement reached by your competent authority through the MAP process leads to additional tax to be paid by your taxpayer, is there publicly available information on the timeframe the taxpayer could expect its tax position to be amended to reflect the agreement reached by the competent authority and/or for the additional tax to be paid?	No	There has not been a case where the agreement reached by our CA through the MAP process has led to additional tax to be paid by the taxpayer.	-
29.	Where the agreement reached by your competent authority through the MAP process leads to a refund of the tax due or paid by your taxpayer, are there publicly available information on the timeframe the taxpayer could expect its tax position to be amended to reflect the agreement reached by the competent authority and/or for a refund of the tax paid?	No	-	For non-TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5245870/content.html Announcement of the State Taxation Administration on Issuing the Implementation Measures for the Mutual Agreement Procedure of Tax Treaties (STA Announcement [2013] No. 56) For TP cases, refer to https://fgk.chinatax.gov.cn/eng/c102962/c102967/c102997/c103016/c5246325/content.html Announcement of the State Taxation Administration on Issuing the Administrative Measures for Special Tax Investigation and

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s/n		Response	Detailed explanation	Where publicly available information and guidance can be found
				Adjustment and Mutual Agreement Procedure (STA Announcement [2017] No. 6)
30.	Are all mutual agreements reached through MAP implemented notwithstanding any time limits in your domestic law?	Yes	-	-
31.	Is there any other information available on the implementation of MAP agreements?	No	-	-